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The Conservative Government –

"Pluralism" or "Competitive Elitism"

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I. Abstract

In the dying days of 2009 Stephen Harper the Prime Minister of Canada phoned the Governor General of Canada Michelle Jean to request the prorogation of the Canadian Parliament until March, 2010. – This was the second time he had done so in just over a year - he seemed quite confident that Canadians wouldn't be bothered much by the move which he justified on the basis that the Conservative Government needed time to "adjust their policies" Critics of the decision to prorogue Parliament were quick to point out that Mr. Harper phoned rather than paid a visit to the Governor General for such an important event. They were also quick to comment that this is symptomatic of the lack of respect that the Prime Minister has consistently exhibited toward the democratic process, culminating in the prorogation of Parliament only to avoid answering to the House in the midst of the Afghan detainee affair. The next day the vast majority of Canadians who are engaged with our political system and who most likely represent a great minority in this relatively politically apathetic country, were scurrying to look up the term "Prorogation" in the dictionary. Prorogation is defined as: "to discontinue a session of (the British Parliament or a similar body)." It has been used over 100 times by many Prime Ministers. It is the government-of-the- day way to exercise political power, generally in the name of the "common good". But in this case - was it? Stephen Harper may have miscalculated the level of apathy of the

Canadian people in that this time prorogation met with much more frustration and criticism than the Prime Minister anticipated. The political price of prorogation is yet to be determined in the next election. The thesis of this paper is that the recent prorogation was a cynical political act that should not be allowed to be exercised in the future without instituting further checks and balances, most especially when it is requested by a minority government. "Competitive Elitism" as defined by Weber and or Schumpeter may have in fact become an inevitable contemporary model for Canada but the conditions for it to function effectively as described by Schumpeter [1] must be present. Schumpeter warned that this democratic model is "at a disadvantage in troubled times" We are definitely living in "troubled times" The consensus appears to be that "competitive elitism" as practiced by the Harper government has over-reached. The return to "pluralism" may not be practical in this era of global and domestic turmoil but consideration must be given to some form of election reform. A Proportional Representation may serve Canadians better resulting in more government responsibility, more accountability a more vociferous opposition or a well functioning coalition and engage a larger constituency.

The paper begins with some historical background of prorogation and its utilization, comparing and contrasting effective and politically transparent uses of this constitutional privilege. The paper then proceeds to describe the political debate of the recent prorogation in an attempt to answer some key questions on the role of government and opposition in a populist democracy

and lessons learned. The paper concludes with specific recommendations for reforms. Finally it offers commentary on the role that we as citizens must play if we care for our Canada to continue to represent a best-in-class democracy.

II. Historical Background

A prorogation is the period between two sessions of a legislative body. When a legislature or parliament is prorogued, it is still constituted (that is, all members remain as members and a general election is not necessary), but all orders of the body (bills, motions) are expunged. This is usually done due to the completion of the agenda set forth in the Speech from the Throne Legislatures and parliaments, once prorogued, remain in recess until summoned again by the Governor General, and a new session is begun with the Speech from the Throne. (Source: *en.wikipedia.org*)

Only once before in Canadian history had a Prime Minister asked for prorogation in an effort to avoid facing humiliation as a result of a Commons vote. Despite the rarity of such a move, however, in a sense prorogation on this occasion was quite consistent with its original use by the sovereign. In centuries past, the king or queen had prorogued Parliament for similar reasons as lay behind Mr. Harper's December 2008 request: "to avoid the inconvenience and cost of another election while also avoiding the embarrassment of--and possible defeat in--continued parliamentary proceedings" [2] Over the centuries, however, the powers and authority of the

Crown have gradually been reduced as the rights of individuals and the influences of democracy have increased. As parliament's powers expanded, it was usually at the expense of those enjoyed by the king or queen. Once monarchs were forced to accept the wishes of parliamentarians acting on behalf of the people, they would often try to find ways to limit the activities of parliament. Over the course of history, prorogation has provided one means by which the sovereign could avoid or lessen the encroachment upon his or her powers even as he or she tried to portray an image of respecting the will of the people. Sounds familiar? In Canada, the power to prorogue Parliament is among the prerogatives which have rested with the Office of the Governor General. However, like most of the other Royal Prerogatives, the Governor General now exercises those powers in accordance with the requests and recommendations of the Prime Minister. Sir John A. MacDonald and his Conservative government was the subject of investigation by a parliamentary committee looking into the scandal surrounding the financing of the Canadian Pacific Railway including allegations of bribes being taken by various government ministers and others. In an effort to thwart the investigation--and to avoid losing a critical vote in the House of Commons--MacDonald requested that the Governor General prorogue Parliament. This would have the effect of halting the investigation since parliamentary committees may not sit or act while Parliament is prorogued.

III. What is the fuss all about?

In late December 2009, Prime Minister Stephen Harper formally asked the Governor General to prorogue Parliament until March 3, 2010. In an interview with CBC's Peter Mansbridge Prime Minister Harper explained that the current session of Parliament has been going on for a year. The Prime Minister explained that this was an extraordinary year with the most difficult economy. The government has been busy implementing an economic recovery through a stimulus program. 2010 looks like a more reasonable year. The government needs the time to "recalibrate its political agenda" and prorogation is needed to "step back, re-examine and refresh" the legislative agenda. John Ibbitson of the Globe and Mail was not buying. He wrote on January 8, 2010 that "prorogation is a small symptom of a grave condition. Our Parliament has become the most dysfunctional in the English speaking world". He quotes Lori Thorlakson, a political scientist who specializes in comparative government at University of Alberta.: "Stephen Harper's decision to have Parliament prorogued for the second time in a year establishes a potential precedent, in which prorogation can be used strategically to bring an end to a session when the going gets tough for the government." Michael Behiels, of the Ottawa Citizen joined the critics on December 31, 2009 referring to "Stephen Harper's not-so-benign dictatorship" He goes on to say that: "It seems Stephen Harper, our not-so-benign dictator, can't stand Canada's constitutional democracy. He is fed up with Parliament's

restrictions on the almost unlimited power of his office and his executive." Craig Oliver, Chief Parliamentary Correspondent, CTV News commented on Jan. 13, 2010: "With this shut-down, the prime minister overreached himself. He stretched the traditional complacency of the Canadian voters to the breaking point ". Daniel Weinstock a political philosopher from the Ethics research centre at the University of Montreal authored a letter that was signed by over 200 Canadian university professors dedicated to educating students about democratic institutions. In his letter he said that: "we are deeply concerned by Prime Minister Stephen Harper's decision to use his power to prorogue Parliament for a second year in a row in circumstances that allow him to evade democratic accountability. The Prime Minister is not only making cavalier use of the discretionary powers entrusted to him in our Parliamentary system, but in so doing he is undermining our system of democratic government." The letter refer to the latest prorogation as: "nakedly partisan, when it is being used to short-circuit the work of the Parliamentary Committee looking into the Afghan detainee question" (Source: http://www.noprorogation-nonprorogation.ca/) It would appear that many Canadians share this sentiment. A Facebook group protesting prorogation has attracted over 200,000 members and the Conservatives' polls have nosedived since the prorogation announcement. The NDP Jack Layton remembers that Mr. Harper, then leader of the Official Opposition lambasted the Chretien government in 2003 when it considered prorogation in saying that: "The

government will prorogue the House so that it will not held accountable for its shameful record" EKOS President Frank Graves commented: "For those who have been speculating as to whether Canadians really care about the 'obscure' issue of prorogation the evidence is now incontrovertible"

To better understand what's the fuss all about requires a broader examination of a number of factors:

1. **The state of "Polarized Pluralism" in Canadian party system**

The Canadian Journal of Political Science 3 defines our political system as an example of "polarized pluralism," whose key feature is domination by a party of the centre. It goes on to say that Prime Ministers have been growing more powerful since the days of Pierre Trudeau and attributes the trend to the rising power of the provinces that forced Ottawa to centralize authority in response. According to Maya Zilih 6 cites political theorist as saying that the competitive elitist approach emphasize the high price for living in a modern world. Because of the rapid development in economic, political and social sphere, in order to live in a modern, industrial society, a technically developed civilization must suffer the restriction of its freedom of choice and action.

Is it possible that while we are constituted as a pluralist democracy our government has been practicing competitive elitism?

2. Minority Governments

In the past four years Canadian elected three consecutive minority governments. This trend requires examination as it is not consistent with either the "Competitive Elitism" or The "Polarized Pluralism" models that tend to create dominant majority governments. By contrast, in her book Minority Government Majority Rule [4] the author claims that "Minority governments in parliamentary democracies are conventionally considered to be unstable and ineffective aberrations from the principle of majority rule." Is it possible that Stephen Harper's government has been utilizing legal and precedent based tactics to maintain the effectiveness of a majority rule in a minority government situation? If so, is it really that bad? Donald J. Savoie [7] argues that both Canada and the UK now operate under court government rather than cabinet government. By court government, he means that effective power now rests with their respective prime ministers and "a small group of carefully selected courtiers". For things that matter to prime ministers and their courts, the decision-making process shifts from formal to informal, involving only a handful of actors. The recent prorogation debate brought this "management style" into question and the decline of Parliament as constituted.

3. Stephen Harper

The book "The Harper Record" [5] describes Stephen Harper as an economic conservative whose early political motivations were deeply

ideological. "While his keen sense of strategic pragmatism has allowed him to make peace with both conservative populism and the traditionalism of social conservatism, he continues to marginalize red toryism within the Canadian conservative family. He surrounds himself with like-minded conservatives and retains a long-held desire to transform Canada in his conservative image. This may explain why he maintains tight control over his organization and, especially, over what gets into the media. Harper has also been described as crafty, context-savvy leader concerned with being informed about the relevant facts and the attitudes, beliefs and capacities of other players, seeking out situations where cooperation can lead to mutual gains. This is not to say that he is unlikely to make enemies: his ideological views and his reaction to constraints may make him susceptible to too blunt a use of power and lack of subtlety. The recent prorogation has likely exposed this side of Stephen Harper.

4. **Government Accountability**

The CBC morning program "The Current" moderated by Anna-Maria Tremonti dedicated a segment of its February 4, 2010 program to the topic of Government Accountability in light of the recent prorogation debate. Duff Conacher of the Democracy Watch , a non partisan organization commended the Harper government for making progress on their campaign credo of 2006: "Government Accountability" In fact 30 of the 59 specific proposals have resulted in legislation. However the two campaign promises known as the "big ones": Conflict of Interest and Political Appointment did not make the list.

This in his opinion casts a shadow on the sincerity of the government being in a minority situation with regards to accountability. It allows the government when it thinks it could not pass a bill through parliament to appoint people to committees that are ideologically aligned with the government.

When you combine all 4 factors a picture emerges that exposes some cracks in our parliamentary system: Government accountability or lack thereof, utilizing political instruments like prorogation to avoid scrutiny and violating its own principles of accountability and transparency. All beg the question of how effective is our current system and what should be done about it?

IV. Key Questions

The key questions that immediately come to mind are: what is the role of government and opposition in a populist democracy? What have we learned from this prorogation debate? What changes should we consider making?
In view of the complex socio-economical environment it is easy to agree with Schumpeter that the idea of the "common good" which "all people could agree on or be made to agree on by the force of rational argument" is no longer practical and that a true pluralist democracy may not be practical or for that matter desirable in Canada. However can we truly say that we can practice competitive elitism that require a high caliber of politicians; competition between rival leaders, a well trained independent bureaucracy of 'good standing and tradition' and most importantly posses 'democratic self-control' in a political culture capable of tolerating differences of opinions?

Recent events and three consecutive minority governments combined with the "troubled times' we live in, do not bode well for the status quo.

V. Conclusions

The paper concludes that from the lessons learned during the prorogation debate some political and electoral reforms may need to be considered sooner than expected. These "troubled times" require a good government, an empowered government with proper checks and balances in terms of accountability and transparency and a vociferous opposition to keep it honest. In the author's opinion at least two key areas need to be addressed:

1. Greater discretionary or constitutional discretion on the part of the Governor General. The author concurs with Daniel Weinstock who in an interview on the TVO's Agenda with Steve Pakin discussed the possibility of creating a body with greater democratic legitimacy that has more wiggle room than the Governor General to consider requests for prorogations with the ability to say No to the Prime Minister;
2. Election reform

   We have a single member plurality (SMP) electoral system that generally results in powerful majority governments. In the past four years it produced minority Conservative governments resulting in political gridlock rather than consideration for the "common good". Minority governments are more symptomatic of a Proportional Representation

system, where it may produce functioning coalitions, in some cases national unity governments and in most cases a meaningful opposition. . Canadians are interested in electoral reforms as demonstrated by the growing attention given to the issue during the last federal elections. Fair Vote Canada argues that SMP should be changed because it distorts the popular vote, wastes votes, produces artificial majority government or in times of turmoil and change creates dysfunctional minority governments.

Webe'sr advocacy of a competitive elitist democracy (Held page 134) is well placed. But it requires a Parliament that offers a degree of openness in government, be an important testing ground for aspiring leaders who are capable of offering a plausible political program and facilitate negotiation on entrenched positions. The recent prorogation exposes the Harper government as potentially disrespectful of opposing points of view. As a minority government aspiring to become a dominant majority this attitude may become self defeating. One thing is for sure we should never take a lesson from our neighbor to the South. As Seymour Lipset 8 elaborates in his book : *Continental divide: the values and institutions of the United States and Canada* we need to be reminded our core values. Whereas America was founded on "Life, Liberty and The Pursuit of Happiness" we were founded on "Peace, Order and Good Government" Let us focus on getting ourselves a good government. Our democracy will continue to thrive as a best-in-class model if and only if

more of us take the time to understand the issues, engage in the political discourse, vote with our minds not just with our hearts and learn to live with our decisions.

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